

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Honorable Michael J. Watanabe

Civil Action No. 15-cv-01795-MJW

ANGUS JOHN FORBES,

Plaintiff,

v.

DEPUTY MICHAEL DONNELLON,
DEPUTY AARON SANDOVAL,

Defendants.

VERDICT FORM

WE THE JURY, in the above-captioned action, render our verdict in response to the following questions:

QUESTION ONE: Did Mr. Forbes, the Plaintiff, prove by a preponderance of the evidence that Deputy Donnellon or Deputy Sandoval violated Mr. Forbes's Fourth Amendment rights by unlawfully arresting Mr. Forbes?

Deputy Michael Donnellon	<u> </u> YES	<u>✓</u> NO
Deputy Aaron Sandoval	<u> </u> YES	<u>✓</u> NO

PROCEED TO QUESTION TWO.

QUESTION TWO: Did Mr. Forbes, the Plaintiff, prove by a preponderance of the evidence that Deputy Donnellon or Deputy Sandoval violated Mr. Forbes's Fourth Amendment

rights by using excessive force during the arrest of Mr. Forbes?

Deputy Michael Donnellon _____ YES ✓ NO

Deputy Aaron Sandoval _____ YES ✓ NO

PROCEED TO QUESTION THREE.

QUESTION THREE: Did Mr. Forbes, the Plaintiff, prove by a preponderance of the evidence that Deputy Donnellon or Deputy Sandoval committed willful and wanton negligence?

Deputy Michael Donnellon _____ YES ✓ NO

Deputy Aaron Sandoval _____ YES ✓ NO

PROCEED TO QUESTION FOUR.

QUESTION FOUR: Did Mr. Forbes, the Plaintiff, prove by a preponderance of the evidence that Deputy Donnellon committed outrageous conduct?

_____ YES ✓ NO

IF YOUR ANSWER IS YES TO ANY ONE OR MORE OF QUESTIONS ONE THROUGH FOUR ABOVE, YOU HAVE FOUND IN FAVOR OF THE PLAINTIFF ANGUS FORBES AS TO THAT DEFENDANT. PROCEED TO QUESTIONS FIVE AND SIX.

IF YOUR ANSWER IS NO AS TO BOTH DEFENDANTS FOR QUESTIONS ONE THROUGH FOUR ABOVE, YOU HAVE FOUND IN FAVOR OF DEFENDANT. SKIP ALL REMAINING QUESTIONS AND PROCEED TO THE CERTIFICATION SECTION AND SIGN THE APPROPRIATE PORTION.

QUESTION FIVE: What amount of actual damages, if any, does the jury award Mr. Forbes? (If the jury finds Mr. Forbes's damages have no monetary value, it must enter an award of nominal damages in the amount of \$1.00).

\$ _____

QUESTION SIX: What amount of punitive damages, if any, does the jury award Mr. Forbes?

\$ _____

PROCEED TO THE CERTIFICATION SECTION AND SIGN THE APPROPRIATE PORTION.

Certification

If you found a verdict in favor of Plaintiff, Mr. Forbes, sign and date the following section. Once you have done so, inform the Court by note that you are ready to return to the courtroom to announce your verdict.

By our signatures and our answers to these questions, we certify that we have found a verdict in favor of the Plaintiff and against [check applicable name(s)] _____ Michael Donnellon _____ Aaron Sandoval, and that the answers on this form represent the unanimous verdict of the jury.

Foreperson

Dated: September ____, 2017

If you found a verdict in favor of the Defendants [check applicable name(s)]
✓ Michael Donnellon ✓ Aaron Sandoval, sign and date the following section. Once
you have done so, inform the Court by note that you are ready to return to the courtroom
to announce your verdict.

By our signatures and our answers to these questions, we certify that we have found a
verdict in favor of the Defendant(s) [check applicable name(s)] ✓ Michael Donnellon
✓ Aaron Sandoval, and that the answers on this form represent the unanimous verdict of the
jury.



Dated: September 27, 2017